

1 **CODE 3370**

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6 **IN THE FAMILY DIVISION**
7 **OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA**
8 **IN AND FOR THE COUNTY OF WASHOE**
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10 **MEGAN MCCAFFERTY,**

11 **Applicant,**

Case No. TPO16-01555

12 **vs.**

Dept. No. DM3

13 **DONOVAN CLARK,**

14 **Adverse Party.**
15 _____/

16 **ORDER DENYING EXTENDED ORDER FOR PROTECTION AGAINST**
17 **DOMESTIC VIOLENCE**

18 This matter came regularly before the court on November 2, 2016. Applicant was present,
19 representing herself. Adverse Party was present, represented by Richard Davies, Esq.

20 The court, having considered the filings, testimony and evidence present at the hearing
21 and having jurisdiction over the parties, enter the following:

22 At the hearing, Applicant's testimony was inconsistent with that of the declarations made
23 in her Application for a Protection Order with respect to the days and times within which
24 Adverse Party allegedly struck her. Additionally, all witnesses testified that Applicant locked
25 herself in the bathroom. She was not "trapped" in the bathroom by the Adverse Party as
26 Applicant initially claimed in her Application. Applicant so testified upon cross examination.

27 While Adverse Party's testimony that it was normal for him to come to the house at 1:00
28 a.m. was not credible, it appears from the sum total of the evidence that the issue between the

1 parties is one of the custody arrangement of the parties' minor child and not domestic
2 violence.

3 For the good cause stated above, the Temporary Order of Protection Against Domestic
4 Violence, filed October 3, 2016 is hereby **dissolved** and the extension hearing scheduled for
5 November 15, 2016 at 8:30 a.m. is vacated.

6 Dated November 7, 2016

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8 JUDGE/HEARING MASTER

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10 Objections/Appeals are governed by WDCR 24 & 32. You have ten (10) days for the receipt of this
11 Recommendation and Order within which to file an objection or an appeal to the District Court.
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